

Whistleblower Policy

Apps for Change — A Minnesota 501(c)(3) Nonprofit Corporation

Effective Date: March 2026

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1. Purpose

Apps for Change (the “Corporation”) is committed to lawful and ethical conduct in all of its activities. This Whistleblower Policy encourages directors, officers, employees, contractors, and volunteers (collectively, “Covered Persons”) to report, in good faith, suspected illegal activity, significant financial irregularities, or serious ethical violations, and it protects those who do so from retaliation. This Policy implements Article XII, Section 12.1 of the Corporation's Bylaws and is intended to be consistent with the Minnesota Whistleblower Act (Minnesota Statutes § 181.932) and applicable federal law, including the provisions of the Sarbanes-Oxley Act that prohibit retaliation against informants and apply to nonprofit organizations.

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2. Reportable Concerns

Covered Persons should report concerns including, but not limited to:

- Suspected violations of federal, state, or local law or regulation;
- Financial irregularities, including fraud, theft, embezzlement, misuse of charitable funds, falsification of financial records, or improper expense practices;
- Misrepresentations to donors, grantmakers, regulators, or the public;
- Violations of the Corporation's Conflict of Interest Policy or other governance policies;
- Improper handling or destruction of records in violation of the Document Retention and Destruction Policy;
- Misuse or unauthorized disclosure of user information contrary to the Corporation's Privacy Policy or privacy commitments; and
- Serious ethical violations, harassment, discrimination, or endangerment of health or safety.

Ordinary disagreements about strategy, product direction, or personnel decisions are best raised through normal channels, but no one will be penalized for raising any concern in good faith under this Policy.

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3. How to Report

(a) Primary Channel

Concerns should ordinarily be reported to the Executive Director, in writing or verbally, with enough detail to permit an appropriate review.

(b) Alternate Channel

Because the Executive Director also serves as Chair/President of the Board, any concern that involves, implicates, or may create a conflict for the Executive Director shall instead be reported directly to the Treasurer or the Secretary of the Board. A concern involving the Treasurer or Secretary shall be reported to a director who is not the subject of the concern. Every director has an independent duty to bring reported concerns to the full disinterested Board.

(c) Form of Report

Reports may be made in person, by telephone, by email, or by letter. Reports may be made anonymously; however, anonymous reports should include sufficient detail and supporting information to allow investigation, since investigators will be unable to follow up with the reporter.

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4. Handling and Investigation

- The director or officer receiving a report shall acknowledge receipt to the reporter (where the reporter is known) within five (5) business days.
- All reports will be reviewed promptly. The disinterested directors shall determine the appropriate scope of investigation, which may include engaging outside counsel, accountants, or other advisors.
- Any director or officer who is the subject of a report shall be recused from the investigation and any related deliberations and votes, consistent with the Conflict of Interest Policy.
- The outcome of the investigation, and any corrective action taken, shall be documented and reported to the Board. Where the reporter is known, the Corporation will inform the reporter that the matter was reviewed and resolved, to the extent consistent with confidentiality and legal obligations.

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5. Confidentiality

Reports will be treated confidentially to the fullest extent consistent with the need to conduct an adequate investigation and to comply with applicable law. The identity of the reporter will be disclosed only to those with a genuine need to know or as required by law.

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6. No Retaliation

No Covered Person who in good faith reports a concern, or who cooperates in an investigation, shall suffer retaliation of any kind, including harassment, intimidation, adverse employment or volunteer action, removal from projects, or other adverse consequences. Retaliation is a serious violation of this Policy and will itself result in disciplinary action, up to and including termination of

employment, engagement, or Board service. Any Covered Person who believes they have been retaliated against should report it immediately using the channels in Section 3.

7. Good Faith

Anyone reporting a concern must act in good faith and have reasonable grounds for believing the information disclosed indicates a violation. A report made in good faith that later proves unfounded carries no penalty. However, knowingly making a false or malicious allegation is a serious violation of this Policy and may result in disciplinary action.

8. Records

The Secretary shall maintain a record of all reports received under this Policy, the investigation undertaken, and the resolution, as part of the Corporation's records, subject to the confidentiality provisions of Section 5 and the Document Retention and Destruction Policy.

Adoption

This Policy was adopted by the Board of Directors of Apps for Change on _____, 2026.

_____ Date: _____

Chair / President & Executive Director

_____ Date: _____

Treasurer

_____ Date: _____

Secretary